WINNING RANCH

*our horses win*

5360 West Agate Avenue • Las Vegas, Nevada

# ADULT PARTICIPANT WAIVER

EQUINE ACTIVITY ASSUMPTION OF RISK • RELEASE • INDEMNIFICATION

**READ THIS DOCUMENT CAREFULLY. IT AFFECTS YOUR LEGAL RIGHTS.**

**Released parties:** Randal Gager and Jenna Gager, individually as property owners; Winning Ranch LLC, as business operator; and Shelby Graham, as riding instructor (collectively, the "Released Parties," as applicable to their respective roles).

## PARTICIPANT INFORMATION

Participant: _____ Date of birth: _____ Phone: _____

Address: _____

Emergency contact: _____ Phone: _____

## INSTRUCTOR & INSURANCE INFORMATION

*To be completed by the instructor before the participant signs.*

Instructor name: _____ Business name (if any): _____

Instructor phone: _____ Instructor email: _____

Insurance carrier: _____ Policy no.: _____

Policy period: _____ Coverage limits: _____

Equine professional liability coverage confirmed: ☐ Yes ☐ No

## 1. ACTIVITIES COVERED

This Agreement applies to riding lessons, instruction, training, horse handling, grooming, leading, catching, feeding, mounting, dismounting, groundwork, demonstrations, and related activities on or connected with the property owned by Randal and Jenna Gager and operated by Winning Ranch LLC. It applies to activities involving horses owned or provided by Winning Ranch LLC, the property owners, Shelby Graham, participants, or other authorized persons.

## 2. ACKNOWLEDGMENT OF INHERENT RISKS

I understand that horses are large, powerful, and unpredictable animals. Equine activities involve inherent risks that cannot be eliminated, even with reasonable care, instruction, supervision, and protective equipment. Risks include being bitten, kicked, stepped on, crushed, dragged, or trampled; being thrown or falling; a horse bolting, bucking, rearing, spooking, slipping, or colliding; equipment failure; uneven or slippery footing; weather and environmental conditions; and the actions of other people or animals. Serious injury, permanent disability, paralysis, or death may result.

## 3. ASSUMPTION OF RISK

I knowingly and voluntarily assume all risks associated with my participation and presence, including known and unknown risks and risks inherent in equine activities. I accept responsibility for my own decisions, actions, conduct, and participation.

## 4. RELEASE AND WAIVER

To the fullest extent permitted by applicable law, I release, waive, discharge, and covenant not to sue the Released Parties for claims, damages, losses, costs, or liabilities arising out of or relating to my participation in equine activities or presence on the property. This release expressly includes claims based on the **ordinary negligence** of a Released Party, including ordinary negligence relating to property conditions, maintenance, horse selection or handling, instruction, supervision, warnings, tack, equipment, or acts and omissions of personnel. This release does not apply to gross negligence, willful or wanton misconduct, intentional injury, or liability that cannot legally be waived.

## 5. NEVADA EQUINE ACTIVITY LAW

I understand that Nevada Revised Statutes (NRS) 41.519 addresses inherent risks of equine activities and provides statutory protections subject to exceptions. Those exceptions may include certain failures to assess a participant's ability, known dangerous property conditions, defective equipment, failure to act responsibly, and willful or wanton disregard. This Agreement supplements applicable law and does not waive non-waivable rights or duties.

## 6. PARTICIPANT SAFETY RESPONSIBILITIES

- Follow all instructions, posted rules, and safety requirements.
- Disclose my riding experience, abilities, limitations, and relevant safety information.
- Wear appropriate footwear and required protective equipment, including a properly fitted riding helmet when required.
- Do not approach, feed, touch, or handle horses without permission.
- Do not participate while impaired, ill, or otherwise unable to participate safely.
- Immediately report injury, discomfort, unsafe conditions, or concerns.
- Accept that the Instructor or Company may stop or refuse participation when they reasonably believe it is unsafe.

## 7. MEDICAL EMERGENCIES AND PERSONAL PROPERTY

I authorize the Released Parties to contact emergency services if they believe assistance is necessary. I am responsible for medical, ambulance, evacuation, and related expenses and for maintaining my own insurance. The Released Parties are not responsible for loss, theft, or damage to personal property except where liability cannot legally be waived.

## 8. INDEMNIFICATION

To the fullest extent permitted by law, I agree to indemnify and hold harmless the Released Parties from third-party claims and reasonable costs arising from my negligent or wrongful acts, violation of property rules, or breach of this Agreement. I am not required to indemnify a party for that party's own negligence, gross negligence, willful misconduct, or other conduct where prohibited by law.

## 9. GOVERNING LAW; SEVERABILITY

This Agreement is governed by Nevada law to the extent applicable. If any provision is unenforceable, the remaining provisions remain effective to the fullest extent permitted by law. This is the entire agreement concerning assumption of risk and release for the activities described.

## PARTICIPANT ACKNOWLEDGMENT & SIGNATURE

**I HAVE READ AND UNDERSTAND THIS AGREEMENT. I UNDERSTAND THAT I AM RELEASING CERTAIN LEGAL CLAIMS, INCLUDING CLAIMS BASED ON ORDINARY NEGLIGENCE, TO THE EXTENT PERMITTED BY LAW. I SIGN VOLUNTARILY.**

_____

Participant printed name

_____ _____

Participant signature Date

Optional photo/video permission (does not affect participation): ☐ I consent ☐ I do not consent

I authorize use of my image/likeness in lawful Winning Ranch promotional or educational materials without compensation only if I check "I consent."

**LEGAL REVIEW NOTE:** Have a Nevada attorney review this form before use, particularly its application to minors and its interaction with NRS 41.519.